

GROWERR

CO-FOUNDERS AGREEMENT

Executed on **26 April 2026**

PARTIES TO THIS AGREEMENT

ROLE	FULL LEGAL NAME	ADDRESS
Founding Member	Pawit Singh	19 Sigwell Street, Yarrabilba QLD 4207
Co-Founder 1	Siddarth Sethia	
Co-Founder 2	Adithya Buddhavarapu	

The parties are collectively referred to as the "**Founders**" and individually as a "**Founder**". The Founding Member is also referred to throughout this agreement as the "**IP Owner**".

BACKGROUND

- A.** The Founding Member independently conceived, designed, and developed the concept, business model, name, and underlying intellectual property for a software platform known as **Growerr** — a multi-tenant SaaS platform for small business owners providing digital presence management, a zero-commission marketplace, CRM, loyalty, marketing, and related tools.
- B.** The Founding Member has invested significant time, creative effort, and resources into developing this concept prior to the date of this agreement, including the design of the product architecture, business strategy, pricing model, charitable giving model, and all associated materials.
- C.** On **26 April 2026**, the Founding Member formally presented and disclosed the Growerr

concept to Co-Founder 1 and Co-Founder 2 for the first time, with a view to them joining as co-founders of the venture.

D. The Founders now wish to set out the terms on which they will work together to build and operate the Growerr business, and to record their mutual agreement regarding intellectual property ownership, decision-making authority, confidentiality, and related matters.

PART 1 — ACKNOWLEDGMENT OF ORIGINAL CONCEPT

1.1 Acknowledgment by Co-Founders

Each of Co-Founder 1 and Co-Founder 2 individually and irrevocably acknowledges and confirms that:

- (a) The Growerr concept, business model, product design, name, branding, charitable giving model, pricing structure, and all associated ideas and materials were **conceived, created, and developed solely by the Founding Member** prior to and including 26 April 2026;
- (b) The Growerr concept was **first disclosed to them by the Founding Member on 26 April 2026**, and they had no prior knowledge of, involvement in, or contribution to the concept before that date;
- (c) The Founding Member is the **sole original author and creator** of the Growerr concept and all intellectual property associated with it as it existed on 26 April 2026;
- (d) They have **not contributed** to the development of any intellectual property, concept, or materials relating to Growerr prior to the date of this agreement; and
- (e) They will **not at any time** represent to any person, entity, investor, partner, media, or court that they were a co-creator, co-inventor, or original author of the Growerr concept or any pre-existing intellectual property.

1.2 Record of Disclosure

The Founding Member discloses the following materials and information to Co-Founder 1 and Co-Founder 2 on 26 April 2026 as part of the founding pitch:

- The Growerr business strategy document
- The Growerr product concept and feature set
- The subscription pricing model and tier structure
- The charitable giving and GMV donation model
- The competitive positioning strategy
- The technical architecture and platform design

The Co-Founders acknowledge receipt of this disclosure on the date of this agreement.

2.1 Pre-Existing IP Belongs to the Founding Member

All intellectual property created or developed by the Founding Member prior to the date of this agreement — including but not limited to the Growerr concept, name, brand, business model, product design, code, documentation, strategy documents, database schema, and any other materials — remains the **sole and exclusive property of the Founding Member**.

The Co-Founders have no claim, right, title, or interest in any pre-existing intellectual property.

2.2 Assignment to the Company

Upon incorporation of the company through which the Founders will operate the Growerr business (the "**Company**"), the Founding Member agrees to assign or license the pre-existing intellectual property to the Company on terms to be agreed between the Founding Member and the Company, provided that:

- (a) the terms of any such assignment or licence are fair and agreed in writing; and
- (b) if no assignment or licence agreement is executed within 90 days of incorporation, the Founding Member's pre-existing IP remains with the Founding Member, and the Company operates under an implied licence that can be revoked by the Founding Member if the Founding Member ceases to hold majority voting control of the Company.

2.3 New IP Created After This Agreement

All intellectual property created by any Founder **in the course of working on the Growerr business** after the date of this agreement shall be owned by the Company once incorporated. Each Founder agrees to promptly disclose and assign to the Company all such intellectual property, and to execute any documents reasonably required to perfect that assignment.

2.4 Moral Rights

To the extent permitted by Australian law, each Founder agrees not to assert any moral rights in respect of intellectual property assigned to the Company under clause 2.3 in a way that would interfere with the Company's reasonable use of that intellectual property.

2.5 No Competing IP

No Founder may create, develop, register, or claim ownership of any intellectual property that is substantially similar to, derived from, or in competition with the Growerr concept without the prior written consent of the Founding Member.

3.1 Intended Company Structure

The Founders intend to incorporate an Australian Proprietary Limited company ("**Pty Ltd**") to operate the Growerr business. The Company name, ACN, and share structure shall be confirmed in writing once incorporation is complete. This agreement governs the relationship between the Founders in the period before incorporation, and shall continue to govern the relationship after incorporation to the extent it is not superseded by a formal Shareholders Agreement.

3.2 Share Structure and Voting Rights

Upon incorporation, the Founders agree that the share structure shall reflect the following principles:

- (a) The **Founding Member shall hold a majority of voting shares** in the Company at all times unless the Founding Member voluntarily and in writing agrees to reduce their voting interest;
- (b) For clarity, the Founding Member shall hold no less than **51% of all issued voting shares** in the Company unless otherwise agreed in writing by the Founding Member;
- (c) The remaining shares shall be allocated among Co-Founder 1, Co-Founder 2, and any future shareholders as agreed in writing by all Founders;
- (d) The specific allocation of shares among Founders beyond the Founding Member's minimum 51% shall be agreed in writing before or at the time of incorporation and recorded in a Shareholders Agreement.

3.3 Profit Distribution

The Founders acknowledge that profit distribution policy has not been finalised at the date of this agreement. The following principles are agreed:

- (a) Profit distributions (including dividends, salary packages, and other remuneration) shall be decided by the Founders at a later date and recorded in a separate written agreement or the Shareholders Agreement;
- (b) The Founding Member's voting majority (clause 3.2) does not automatically determine profit entitlement — profit sharing is a separate matter to be agreed;
- (c) Until a formal profit distribution agreement is signed, no Founder shall pay themselves, distribute profits, or otherwise extract value from the Company without the written consent of the Founding Member.

3.4 Future Equity Raises

If the Company raises external investment in the future:

- (a) All Founders shall have **pre-emptive rights** to participate in any new share issuance on a pro-rata basis before shares are offered to external parties;
 - (b) Any share issuance that would reduce the Founding Member's voting control below 51% requires the **express written consent of the Founding Member**, which may be withheld in their absolute discretion;
 - (c) This protection applies until the Founding Member voluntarily agrees in writing to waive it.
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PART 4 — DECISION MAKING AND RESERVED MATTERS

4.1 Day-to-Day Decisions

Routine operational decisions may be made by any Founder acting within their agreed area of responsibility, without requiring formal approval from all Founders.

4.2 Majority Decisions

Decisions that are material but not in the Reserved Matters list below shall be made by a simple majority of Founders. In the event of a tie, the Founding Member's vote is the deciding vote.

4.3 Reserved Matters (Founding Member Approval Required)

The following decisions require the **express written approval of the Founding Member** regardless of what any majority vote decides. These are non-negotiable reserved matters:

- (a) Any change to the Company's name, brand, or core product concept;
- (b) Any assignment, licence, sale, or transfer of the Company's intellectual property or the Founding Member's pre-existing IP;
- (c) Any issuance of new shares or options that would reduce the Founding Member's voting interest below 51%;
- (d) Any merger, acquisition, restructure, or sale of the Company or substantially all of its assets;
- (e) Admission of any new co-founder or shareholder;
- (f) Any change to this agreement or any Shareholders Agreement that affects the Founding Member's rights or protections;
- (g) Any material change to the Company's charitable giving model, including removal of the GMV donation feature or the public transparency model;
- (h) Entry into any agreement with a value exceeding **\$50,000 AUD** in a single transaction or **\$100,000 AUD** in aggregate with a single counterparty in a 12-month

period;

(i) Appointment or removal of the Company's CEO, CTO, or any other executive director;

(j) Any act that could expose the Founding Member to personal liability;

(k) Filing for insolvency or voluntary administration; and

(l) Commencement or settlement of any legal proceedings in the Company's name.

4.4 Deadlock

If the Founders are unable to agree on a material decision that is not a Reserved Matter, the matter shall be referred to mediation as set out in Part 8 (Dispute Resolution). The Founding Member's position shall prevail on any Reserved Matter regardless of deadlock.

PART 5 — EQUITY VESTING

5.1 Purpose of Vesting

Vesting protects all Founders — including the Founding Member — by ensuring that equity is earned through ongoing contribution to the business rather than granted upfront without accountability.

5.2 Vesting Schedule

Unless otherwise agreed in writing, the equity allocated to **Co-Founder 1 and Co-Founder 2** shall vest according to the following schedule:

- **Cliff:** No shares vest during the first **12 months** from the date of this agreement
- **After the cliff:** Shares vest monthly in equal instalments over the following **36 months**
- **Total vesting period:** 4 years from the date of this agreement
- **Acceleration:** 100% of unvested shares vest immediately if the Company is acquired and the Co-Founder is not offered a comparable role in the acquiring entity

5.3 Founding Member Vesting

The Founding Member's shares are **not subject to the vesting schedule** in clause 5.2. The Founding Member's equity is fully vested from the date of incorporation, reflecting their pre-existing contribution of the concept, IP, and development work that preceded this agreement.

5.4 Forfeiture on Departure

If a Co-Founder leaves the Company before their shares are fully vested:

- (a) **All unvested shares are forfeited** and returned to the Company (or cancelled)

at no cost;

(b) Vested shares are treated according to the Good Leaver / Bad Leaver provisions in clause 6.3;

(c) The departing Co-Founder retains no ongoing rights to the Company's intellectual property, business, name, or brand.

PART 6 — FOUNDER DEPARTURE

6.1 Resignation

Any Founder wishing to resign from the Company must provide a minimum of **60 days' written notice** to the other Founders. During the notice period, the resigning Founder must cooperate fully with the transition of their responsibilities.

6.2 Removal

A Co-Founder may be removed from their operational role in the Company by the Founding Member acting alone, where:

- (a) The Co-Founder has materially breached this agreement and has not remedied the breach within 14 days of written notice;
- (b) The Co-Founder has engaged in fraud, dishonesty, or gross misconduct;
- (c) The Co-Founder has become insolvent or bankrupt;
- (d) The Co-Founder has failed to contribute meaningfully to the business for a period of 60 consecutive days without reasonable excuse; or
- (e) The Co-Founder has breached their confidentiality or non-compete obligations under this agreement.

For the avoidance of doubt, the **Founding Member cannot be removed** from their ownership or governance role by Co-Founder 1 or Co-Founder 2, individually or collectively, without the Founding Member's written consent.

6.3 Good Leaver / Bad Leaver

Good Leaver (resignation with proper notice, redundancy, death, permanent disability, or removal without cause):

- Vested shares are retained by the departing Founder
- The Company and remaining Founders have a right of first refusal to purchase the vested shares at fair market value within 60 days

Bad Leaver (removal for cause under clause 6.2(a)–(e), or departure in breach of this agreement):

- Unvested shares are forfeited as per clause 5.4

- Vested shares must be offered to the Company at **cost price** (the lower of original issue price or fair market value) — the Company has 60 days to exercise this right
- If the Company does not exercise this right, the remaining Founders may purchase the shares at cost price

6.4 Post-Departure IP

Upon departure, a Co-Founder:

- (a) Retains no rights to any intellectual property owned by or assigned to the Company;
- (b) Must immediately return all confidential information, devices, documents, and materials belonging to the Company;
- (c) Remains bound by the confidentiality obligations in Part 7 indefinitely, and by the non-compete obligations in clause 7.4 for the period specified; and
- (d) Must execute any documents required to give effect to the transfer or forfeiture of their shares.

PART 7 — CONFIDENTIALITY AND NON-COMPETE

7.1 Confidential Information

"Confidential Information" means all information relating to the Growerr business, concept, strategy, technology, customers, merchants, financials, code, database design, marketing plans, pricing, partnership terms, and any other information that a reasonable person would regard as confidential — whether disclosed orally, in writing, or by any other means.

7.2 Obligation of Confidentiality

Each Founder agrees that they will:

- (a) Keep all Confidential Information strictly confidential;
- (b) Not disclose Confidential Information to any third party without the prior written consent of the Founding Member;
- (c) Use Confidential Information only for the purposes of building and operating the Growerr business;
- (d) Take all reasonable steps to protect Confidential Information from unauthorised access or disclosure; and
- (e) Promptly notify the Founding Member if they become aware of any actual or suspected unauthorised disclosure of Confidential Information.

7.3 Exceptions

The confidentiality obligations in clause 7.2 do not apply to information that:

- (a) Is or becomes publicly known through no breach of this agreement;
- (b) Was already known to the Founder before it was disclosed to them (which Co-Founder 1 and Co-Founder 2 confirm does not apply to anything disclosed on 26 April 2026); or
- (c) Is required to be disclosed by law or court order, provided the Founding Member is given as much prior written notice as possible.

7.4 Non-Compete

During the period they are a Founder and for **24 months** after ceasing to be a Founder (for any reason), each Co-Founder agrees that they will not, without the prior written consent of the Founding Member:

- (a) Establish, join, invest in, advise, or work for any business that is **substantially similar to or directly competitive** with Growerr — specifically, any platform providing SaaS tools for food and retail merchants including storefront management, order management, loyalty, SMS/email marketing, or a zero-commission marketplace;
- (b) Solicit, attempt to solicit, or accept business from any merchant, customer, or partner of Growerr with whom they came into contact during their time as a Founder;
- (c) Solicit or attempt to hire any employee, contractor, or advisor of the Company; or
- (d) Use the Growerr name, brand, or any confusingly similar name or brand in connection with any other business.

7.5 Reasonableness

The Founders acknowledge that the restrictions in clause 7.4 are reasonable in scope, duration, and geography given the nature of the Growerr business and the confidential information to which Co-Founders have access. If any court finds a restriction unreasonable, it shall be modified to the minimum extent necessary to make it enforceable rather than void.

7.6 No Passing Off

Each Co-Founder agrees that they will not, at any time:

- (a) Pass off any product, service, or business as Growerr or as associated with Growerr;
 - (b) Represent to any person that they were the sole or primary creator of Growerr or the concept behind it;
 - (c) Claim authorship or inventorship of any Growerr intellectual property before a court, investor, media outlet, or any other party; or
 - (d) Take any action that damages, dilutes, or misrepresents the Growerr brand or the Founding Member's reputation as its originator.
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PART 8 — DISPUTE RESOLUTION

8.1 Good Faith Negotiation

If a dispute arises between the Founders in connection with this agreement, the Founders shall first attempt to resolve it through good faith direct negotiation within **14 days** of the dispute being raised in writing.

8.2 Mediation

If the dispute is not resolved through negotiation within 14 days, either party may refer the dispute to mediation. The mediator shall be agreed between the parties or, failing agreement within 7 days, appointed by the **Australian Disputes Centre**. The cost of mediation shall be shared equally unless the mediator directs otherwise.

8.3 Governing Law and Jurisdiction

This agreement is governed by the laws of **Queensland**, Australia. The Founders submit to the non-exclusive jurisdiction of the courts of Queensland.

8.4 Injunctive Relief

Nothing in this Part 8 prevents any Founder from seeking urgent injunctive or other interlocutory relief from a court where a breach or threatened breach of this agreement would cause irreparable harm. The Founders acknowledge that a breach of the confidentiality, non-compete, or IP provisions would constitute irreparable harm for which damages alone would be an inadequate remedy.

PART 9 — GENERAL PROVISIONS

9.1 Entire Agreement

This agreement constitutes the entire agreement between the Founders with respect to its subject matter, and supersedes all prior discussions, representations, and agreements. No representation, warranty, or undertaking not contained in this agreement shall be binding on any party.

9.2 Amendments

This agreement may only be amended by a written instrument signed by all Founders. No amendment that reduces the Founding Member's rights or protections under Parts 1, 2, 3, 4, or 7 is valid without the Founding Member's express written consent.

9.3 No Assignment

No Founder may assign, transfer, or deal with their rights or obligations under this

agreement without the prior written consent of the Founding Member. Any purported assignment in breach of this clause is void.

9.4 Severability

If any provision of this agreement is found to be invalid, illegal, or unenforceable, it shall be modified to the minimum extent necessary to make it valid, or severed if modification is not possible. The remaining provisions continue in full force and effect.

9.5 Waiver

A failure or delay by a Founder to exercise a right under this agreement does not constitute a waiver of that right. A waiver of a right on one occasion does not constitute a waiver on any future occasion.

9.6 Counterparts

This agreement may be signed in counterparts, each of which constitutes an original. Together the counterparts constitute one agreement. Physical (wet ink) signatures are preferred. If electronic signatures are used, all parties must use the same e-signature platform and retain a time-stamped record.

9.7 Costs

Each party bears their own legal costs in connection with the preparation and execution of this agreement.

PART 10 — EXECUTION

By signing below, each Founder confirms that:

- They have read and understood this agreement in full;
- They have had a reasonable opportunity to obtain independent legal advice before signing;
- They are signing freely and voluntarily, without duress or undue influence; and
- They agree to be bound by the terms of this agreement.

FOUNDING MEMBER

Pawit Singh

SIGNATURE



DATE

25/4/26

CO-FOUNDER 1**Siddarth Sethia**

SIGNATURE

DATE

CO-FOUNDER 2**Adithya Buddhavarapu**

SIGNATURE

DATE

**SCHEDULE A — PRE-EXISTING GROWERR
INTELLECTUAL PROPERTY**

The following materials were created solely by the Founding Member prior to and including 26 April 2026 and constitute the pre-existing IP referred to in clause 2.1:

ITEM	DESCRIPTION
Business name	"Growerr"
Business concept	Multi-tenant SaaS platform for small business owners (restaurants and retail) providing digital storefront, order management, CRM, loyalty, SMS/email campaigns, and a zero-commission public marketplace
Business strategy document	Full written strategy including pricing model, revenue projections, competitive positioning, payment processing decisions, delivery integration model, and charitable giving model
Charitable giving model	GMV-based donation structure, voluntary merchant rate, public impact dashboard concept, blockchain transparency roadmap
Product architecture	All page and component design, database schema, feature set, and technical decisions documented in planning documents and the Growerr Lovable project

Pricing and tier structure	Solo (\$49), Marketplace (\$99), Growth (\$199), Enterprise (custom) — with all feature gating decisions
Branding	The "Growerr" name and any logo, colour palette, and brand assets created prior to and including 26 April 2026
Domain names	Any domains registered by the Founding Member prior to and including 26 April 2026
Code	All code written by the Founding Member prior to and including 26 April 2026, including code in the Growerr Lovable project and associated repositories